

Bihar Public Works Contracts Disputes Arbitration Tribunal (Amendment) Act, 2020

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State of Bihar - Act

Bihar Public Works Contracts Disputes Arbitration Tribunal (Amendment) Act, 2020

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Bihar Public Works Contracts Disputes Arbitration Tribunal (Amendment) Act, 2020

Act 14 of 2020

Published in Bihar Gazette on 10 August 2020

Commenced on 10 August 2020

[This is the version of this document from 10 August 2020.]

AN ACT for amendment in section 4 (1) and section (3) (b) of Bihar Public Works Contracts Disputes Arbitration Tribunal Act 2008 (Bihar Act-21, 2008) be it enacted by the Legislature of Bihar in the 71st year of the Republic of India as follows :-

1.

Short title, extent and commencement.?

(i)

This act may be called as Bihar Public Works Contracts Disputes Arbitration (Amendment) Act, 2020

(ii)

It extends to the whole of the State of Bihar.

(iii)

This Act shall come into force with effect from the date it is published in the Gazette of the State of Bihar.

2.

Amendment in Section 4 of the Bihar Act-21, 2008:-

(i)

Section 4(1) & section 4(3) (b) of Bihar Public Works Contracts Disputes Arbitration Act 2008 (Bihar Act-21, 2008) will be substituted by the following:

"4. Terms and conditions of service of the Chairman and other Member of Tribunal:-

"4(1) The Chairman and Members of the Tribunal shall hold office for a term of three years from the date on which he assumes the office or until he attains the age of seventy years, whichever is earlier."

"4(3) (b) The state government may if it thinks so, remove the Chairman or any other Member of the Tribunal (after providing them appropriate opportunity of hearing) for reason of incompetence, laxity in performing the duties, misconduct, passing of order against the law, for engagement in any other paid employment while holding this office."

By Order of the Governor of Bihar,

P.C. Choudhary,

Secretary to the Government.

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